4. How many business days can Authorized Purchaser expect ordered Goods and/or Services to be delivered? Minimally, orders placed by 4:00 pm on a business day will be delivered within five business days or as otherwise required in writing by the Authorized Purchaser.

5. Describe how Proposer will ensure the accuracy of its:

    1. Billing invoices;
    2. Supporting documentation;
    3. Usage reports;
    4. Received Purchase Orders; and
    5. Price Agreement Pricing. For example, how will Proposer ensure that Authorized Purchaser will get agreed upon pricing.

6. An explanation of Proposer's capabilities to create customized shopping lists for Authorized Purchasers, including blocking items, adding proprietary items, etc.

7. Describe Proposer's escalation procedures for back-orders, retired products, service issues, and other ordering problems. Include a description of how Authorized Purchaser is notified of the delays.

j. Proposer shall submit its ordering policies including, if applicable, minimum orders.

SECTION 4: SOLICITATION PROCESS

4.1 PUBLIC NOTICE

The RFP and attachments are published in the State of Oregon's electronic procurement system OregonBuys at https://oregonbuys.gov/. Documents will not be mailed to prospective Proposers.

Modifications, if any, to this RFP will be made by written Amendment(s) published in OregonBuys. Prospective Proposer is solely responsible for checking OregonBuys to determine whether or not any Amendment(s) have been issued. Amendment(s) are incorporated into the RFP by this reference.

4.2 PRE-PROPOSAL CONFERENCE

An Online Pre-Proposal conference will be held at the date and time listed in the Schedule. Prospective Proposers' participation in this conference is highly encouraged but not mandatory.

The purpose of the Pre-Proposal conference is to:

- Provide additional description of the project;
- Explain the RFP process; and
- Answer any questions Proposers may have related to the project or the process.

Statements made at the Pre-Proposal conference are not binding upon DAS PS or Agency. Proposers may be asked to submit questions in Writing.

Interested parties may participate in the Pre-Proposal Conference by selecting the link below:

https://teams.microsoft.com/l/meetup-join/19%3ameeting_NDU1NmVjNzAtYjU3NS00MThkLWFiOGUtMDViMGRiYWQxMGM2%40thread.v2/0?context=%7b%22Tid%22%3a%22aa3f6932-fa7c-47b4-a0ce-a598cad161cf%22%2c%22Oid%22%3a%22abab7779-6768-419d-a4cd-6e690d252ffa%22%7d

Meeting ID: 286 326 531 776
Passcode: fP4vCJ

4.3 QUESTIONS / REQUESTS FOR CLARIFICATIONS

All inquiries, whether relating to the RFP process, administration, deadline or method of award, or to the intent or technical aspects of the RFP must:

- Be delivered to the SPC via an OregonBuys submission or email;
- Reference the OregonBuys bid number S-10700-00007215 ;
- Identify Proposer's name and contact information;
- Refer to the specific area of the RFP being questioned (i.e. page, section and paragraph number); and
- Be received by the due date and time for Questions/Requests for Clarification identified in the Schedule in Section 1.2.

4.4 SOLICITATION PROTESTS

4.4.1 Protests to RFP

Prospective Proposer may submit a Written protest of anything contained in this RFP, including but not limited to, the RFP process, Specifications, Scope of Work, and the Sample Price Agreement. This is prospective Proposer's only opportunity to protest the provisions of the RFP, except that Proposer may protest as provided below.

4.4.2 Protests to Amendment(s)

Prospective Proposer may submit a Written protest of anything contained in an Amendment. Protests to an Amendment, if issued, must be submitted by 5:00 p.m. Pacific Time on the second business day following the issuance of the Amendment or the date/time specified in the Amendment, or they will not be considered. Protests of matters not added or modified by the Amendment will not be considered.

4.4.3 Requirements for Protests

All protests must:

1. Be delivered to the SPC via email;
2. Reference the OregonBuys bid number S-10700-00007215;
3. Identify prospective Proposer's name and contact information;
4. Be sent by an authorized representative;
5. State the reason for the protest, including:
    - the grounds that demonstrate how the Procurement Process is contrary to law,

Unnecessarily Restrictive, legally flawed, or improperly specifies a brand name; and
    - evidence or documentation that supports the grounds on which the protest is based; and
6. State the proposed changes to the RFP provisions or other relief sought.

Protests to the RFP must be received by the due date and time identified in the Schedule.

Protests to an Amendment must be received by the due date identified in the Amendment.

4.5 PROPOSAL DELIVERY OPTIONS

Proposer is solely responsible for ensuring its Proposal is received by the SPC in accordance with the RFP requirements before Opening. DAS PS is not responsible for any delays in mail or by common carriers or by transmission errors or delays, or for any mis-delivery for any reason. A Proposal submitted by any means not authorized below will be rejected. The following delivery options are permitted for this RFP:

Delivery through OregonBuys

Proposal submission should be electronically through OregonBuys. at: OregonBuys.gov

Detailed instructions on how to submit a Proposal can be found at OregonBuys Vendor Formal Solicitation Response.pdf

4.6 PROPOSAL MODIFICATION OR WITHDRAWAL

If Proposer wishes to make modifications to a submitted Proposal, Proposer must submit its modification in one of the authorized methods listed in Section 4.5 (Proposal Delivery Options). To be effective the modification must include the OregonBuys bid number and be submitted to the SPC prior to Opening.

If Proposer wishes to withdraw a submitted Proposal, it must submit a Written notice signed by an authorized representative of its intent to withdraw to the SPC via email prior to the Opening in accordance with OAR 125-247-0440. To be effective the notice must include the OregonBuys bid number.

4.7 PROPOSAL DUE

A Proposal (including all required submittal items) must be received by the SPC on or before Opening. All Proposal modifications or withdrawals must also be received prior to Opening.

A Proposal received after Opening is considered **LATE** and will **NOT** be accepted for evaluation. A late Proposal will be returned to Proposer or destroyed.

4.8 PUBLIC OPENING

A public Opening will be held on the date and time listed in the Schedule set forth in Section 1.2 and in the manner stated on the Cover Page. Only the names of Proposers will be read at the Opening; no other information will be made available at that time. Proposals received will not be available for inspection until after the evaluation process has been completed and the notice of Intent to Award is

issued pursuant to OAR 125-247-0630. To attend the public Opening select the link below:

https://teams.microsoft.com/l/meetup-join/19%3ameeting_Y2EyMGZhOGMtNDZjOS00YjFkLWFlZTEtYWQxMjllZjI1ZmFl%40thread.v2/0?context=%7b%22Tid%22%3a%22aa3f6932-fa7c-47b4-a0ce-a598cad161cf%22%2c%22Oid%22%3a%22abab7779-6768-419d-a4cd-6e690d252ffa%22%7d

Meeting ID: 221 940 206 164
Passcode: afgkkD

4.9 PROPOSAL REJECTION

DAS PS may reject a Proposal for any of the following reasons:

1. Proposer fails to substantially comply with all prescribed RFP procedures and requirements, including but not limited to the requirement that Proposer's authorized representative sign the Proposal.
2. Proposer has liquidated and delinquent debt owed to the State or any department or agency of the State.
3. Proposer fails to meet the responsibility requirements of ORS 279B.110.
4. Proposer makes any contact regarding this RFP with State representatives such as State employees or officials other than the SPC or persons authorized by the SPC, or inappropriate contact with the SPC.
5. Proposer attempts to influence a member of the Evaluation Committee.
6. Proposal is conditioned on DAS PS's acceptance of any other terms and conditions or rights to negotiate any alternative terms and conditions that are not reasonably related to those expressly authorized for negotiation in the RFP or Amendment(s).

4.10 EVALUATION PROCESS

4.10.1 Responsiveness and Responsibility Determination

4.10.1.1 Responsiveness determination

A Proposal received prior to Opening will be reviewed to determine if it is Responsive to all RFP requirements including compliance with Section 3.1 (Minimum Qualifications) and Section 3.2 (Minimum Submission Requirements). If the Proposal is unclear, the SPC may request clarification from Proposer. However, clarifications may not be used to rehabilitate a non-Responsive proposal. If the SPC finds the Proposal non-Responsive, the Proposal may be rejected; however, DAS PS may waive mistakes in accordance with OAR 125-247-0470.

4.10.1.2 Responsibility Determination

A Proposal received prior to Opening will be reviewed to determine if it is Responsive to all RFP requirements including compliance with Section 3.2 (Minimum Qualifications) and Section 3.3 (Minimum Submission Requirements). If the Proposal is unclear, the SPC may request clarification from Proposer. However, clarifications may not be used to rehabilitate a non-Responsive proposal. If the SPC finds the Proposal non-Responsive, the Proposal may be

rejected; however, DAS PS may waive mistakes in accordance with OAR 125-247-0470.

4.10.2 PREFERENCES

4.10.2.1 Reciprocal Preference

For evaluation purposes per OAR 125-246-0310, DAS PS shall add a percentage increase to each out-of-state Proposer's Proposal price that is equal to the percentage preference, if any, given to a Resident Proposer in the Proposer's state.

4.10.2.2 Recycled Materials

DAS PS will give preference to Goods manufactured from Recycled Materials if each of the conditions specified in ORS 279A.125 (2) exists following any adjustments made to the price of the Goods according to any applicable reciprocal preference.

4.10.2.3 Tiebreakers

If DAS PS receives Proposals identical in price, fitness, availability and quality and chooses to award a Price Agreement, DAS PS shall award the Price Agreement in accordance with the procedures outlined in OAR 137-046-0300.

4.11 POINT AND SCORE CALCULATIONS

Proposals meeting the requirements outlined in the Minimum Submission Requirements section will be evaluated by an Evaluation Committee. Evaluators will assign a score for each evaluation criterion listed below in this section.

The SPC may request further clarification to assist the Evaluation Committee in gaining additional understanding of Proposals. A response to a clarification request must be to clarify or explain portions of the already submitted Proposal and may not contain new information not included in the original Proposal.

The Proposals will be scored as follows for Round 1:

TOTAL POINTS POSSIBLE:		130
POINTS POSSIBLE		
3.4.8	Vendor Profile	30
3.4.9	Executive Summary	30
3.4.10	Sample Materials Document	40
3.4.11	Ordering Process	30

EXAMPLE:

Proposer A receives points of 10, 10, 40 and 10 The SPC totals these scores for a total score of 70 and divides the total scores by the number of evaluation committee members, in this example three (3) for a score of 23.

Proposer B receives points of20, 20, 40 and 30 The SPC totals these scores for a total score of 100 and divides the total scores by the number of evaluation committee members, in this example three (3) for a score of 33. Proposer B would be ranked higher than Proposer A.

4.12 RANKING OF PROPOSERS

The SPC will average the scores for each Proposal in a given round of competition (calculated by totaling the points awarded by each Evaluation Committee member and dividing by the number of members). The SPC will combine the average score for each Proposal.

After any applicable preference has been applied, the SPC will determine the rank of each Proposal, with the highest score receiving the highest rank, and successive rank order determined by the next highest score.

DAS PS may, in DAS PS's sole discretion, determine one or more apparent successful Proposers with no additional rounds of competition. If additional rounds are conducted, DAS PS will rank advancing Proposers at the conclusion of each subsequent round and may determine an apparent successful Proposer at any time during the solicitation process.

NEXT STEP DETERMINATION

At the conclusion of a round of competition, DAS PS **WILL** conduct additional round(s) of competition if in the best interest of the State. Additional rounds of competition may consist of, but will not be limited to:

- Interviews
- Key Persons and Resumes
- Demonstrations

Interviews and Demonstrations will be conducted online via Microsoft Teams. The link for this meeting is below:

https://teams.microsoft.com/l/meetup-join/19%3ameeting_NDg3ZTBmYzktMTNjYy00ZWFmLWEwMWMtZjhjNTczZWIzYWYx%40thread.v2/0?context=%7b%22Tid%22%3a%22aa3f6932-fa7c-47b4-a0ce-a598cad161cf%22%2c%22Oid%22%3a%22abab7779-6768-419d-a4cd-6e690d252ffa%22%7d

Meeting ID: 237 402 165 245
Passcode: nr33YL

4.12.1 Competitive Range Determination

If DAS PS, in its sole discretion, determines that one or more additional rounds of competition is necessary, it will select a Competitive Range to indicate the Proposers that will be invited to participate in a subsequent round. The Competitive Range may include all, or at DAS PS's sole discretion, some (based primarily on a natural break in the distribution of scores), of the Proposers from a previous round. DAS PS will post a notice in OregonBuys of its Competitive Range Determination and provide details about the process and schedule for the subsequent round.